

HOUSE No. 1000

The Commonwealth of Massachusetts

PRESENTED BY:

Christopher M. Markey

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing a coastal waters wastewater financing commission.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Christopher M. Markey</i>	<i>9th Bristol</i>	<i>1/17/2025</i>
<i>Mark C. Montigny</i>	<i>Second Bristol and Plymouth</i>	<i>1/22/2025</i>
<i>Christopher Hendricks</i>	<i>11th Bristol</i>	<i>2/4/2025</i>
<i>Mark D. Sylvia</i>	<i>10th Bristol</i>	<i>2/10/2025</i>
<i>Antonio F. D. Cabral</i>	<i>13th Bristol</i>	<i>2/18/2025</i>
<i>Steven J. Ouellette</i>	<i>8th Bristol</i>	<i>3/11/2025</i>
<i>Justin Thurber</i>	<i>5th Bristol</i>	<i>9/16/2025</i>

HOUSE No. 1000

By Representative Markey of Dartmouth, a petition (accompanied by bill, House, No. 1000) of Christopher M. Markey and others for an investigation by a special commission (including members of the General Court) relative to specific revenue sources to fund essential wastewater infrastructure improvements in response to nitrogen pollution on the south coast of Massachusetts. Environment and Natural Resources.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing a coastal waters wastewater financing commission.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Notwithstanding any general or special laws to the contrary, there shall be established a
2 special legislative commission to evaluate and identify specific revenue sources to fund essential
3 wastewater infrastructure improvements in response to nitrogen pollution on the south coast of
4 Massachusetts specifically in the towns of Acushnet, Carver, Dartmouth, Fairhaven, Lakeville,
5 Gosnold, Marion, Mattapoisett, Middleborough, New Bedford, Plymouth, Rochester, Wareham,
6 and Westport.

7 The special legislative commission shall consist of 27 members and include the house
8 and senate chairs of the Joint Committee on Natural Resources and the Environment, who shall
9 serve as co-chairs, the chair of the Senate Ways and Means Committee or a designee, chair of the
10 House Ways and Means Committee or a designee; the secretary of energy and environmental
11 affairs or a designee; the state treasurer or a designee; the secretary of administration and finance

or a designee; the Executive Director of the Southeast Regional Planning and Economic Development District or a designee; the Executive Director of the One SouthCoast Chamber or a designee; the President of the Buzzards Bay Coalition or a designee; 2 people to be appointed by the president of the senate; 2 people to be appointed by the speaker of the house of representatives; each of whom shall be from the south coast region; and 1 person to be appointed by the Select Board or Mayor of each of the 14 affected communities.

All appointees shall be made no later than 30 days following the effective date of this resolve. The co-chairs shall convene the first meeting of the special commission within 45 days of all appointments being made.

In the course of its deliberations, the commission shall make it a priority to examine the financial need of reducing nutrient pollution to the south coast's coastal waters including the costs to (i) expand sewer infrastructure to connect more septic systems to sewerage, (ii) expanding capacity and upgrading the level of treatment at existing wastewater treatment facilities (iii) constructing additional wastewater treatment facilities to address expanded service areas, (iv) reducing Combined Sewer Overflow (CSO) discharges, and (v) upgrading septic systems to nitrogen reducing systems. Further, the commission shall examine (i) potential revenue sources, including but not limited to new fees or taxes for funding needed wastewater infrastructure improvements, (ii) the finances of cities and towns to make recommendations for improvements to financial policies and procedures.

The commission shall develop funding and financing recommendations to address wastewater infrastructure needs and to reduce nitrogen pollution on the south coast. The recommendations shall identify fair and equitable means of financing wastewater infrastructure

34 improvements to address nitrogen pollution. The Commission shall have the authority to work
35 with outside experts to conduct necessary reviews; provide guidance on potential action plans;
36 and provide economic analysis of financing sources. The experts shall be specialists in the fields
37 of tax and revenue, nutrient pollution, water quality, wastewater infrastructure, and any other
38 fields that may be useful to implement the Commission's tasks.

39 The commission shall hold public hearings to assist in the collection and evaluation of
40 data and testimony. Experts may attend the public hearings to provide testimony and any other
41 relevant information regarding the fulfilment of the commission's objectives.

42 The commission shall prepare a written report detailing identified funding sources and its
43 recommendations, if any, together with drafts of legislation necessary to carry those
44 recommendations into effect. The commission shall submit its initial report to the governor, the
45 secretary of the executive office of energy and environmental affairs, the clerks of the senate and
46 house of representatives, the chairs of the house and senate committees on ways and means and
47 the joint committee on environment, natural resources and agriculture not later than 1 year after
48 the effective date of this act.